

PUBLICATIONS DE LA COUR PERMANENTE DE JUSTICE
INTERNATIONALE

SÉRIE A — N° 14

RECUEIL DES ARRÊTS

AFFAIRE RELATIVE A LA DÉNONCIATION DU
TRAITÉ SINO-BELGE DU 2 NOVEMBRE 1865

ORDONNANCE DU 21 FÉVRIER 1928

PUBLICATIONS OF THE PERMANENT COURT
OF INTERNATIONAL JUSTICE

SERIES A.—No. 14

COLLECTION OF JUDGMENTS

DENUNCIATION OF THE TREATY
OF NOVEMBER 2nd, 1865, BETWEEN CHINA
AND BELGIUM.

ORDER OF FEBRUARY 21st, 1928.

LEYDE
SOCIÉTÉ D'ÉDITIONS
A. W. SIJTHOFF
1928



LEYDEN
A. W. SIJTHOFF'S
PUBLISHING COMPANY
1928

ORDER

MADE ON FEBRUARY 21st, 1928.

THIRTEENTH (EXTRAORDINARY) SESSION

1928.
February 21st.
File E. c. IX.

Before :

MM. ANZILOTTI,	<i>President,</i>	
HUBER,	<i>Former President,</i>	
WEISS,	<i>Vice-President,</i>	
LODER,		} <i>Judges.</i>
NYHOLM,		
ALTAMIRA,		
ODA,		
YOVANOVITCH,		} <i>Deputy-Judges.</i>
BEICHMANN,		
NEGULESCO,		
WANG,		

CASE CONCERNING THE DENUNCIATION OF THE TREATY OF
NOVEMBER 2nd, 1865, BETWEEN CHINA AND BELGIUM.

THE COURT,

composed as above,
after deliberation,
makes the following *Order* :

The Permanent Court of International Justice,
Having regard to Article 48 of the Statute of the Court ;
Having regard to Article 33 of the Rules of Court ;
Having regard to the Application dated November 25th,
1926, filed with the Registry of the Court on November 26th,
1926, on behalf of the Belgian Government, instituting proceedings
before the Court in a suit concerning the denunciation by the
Chinese Government of the Treaty concluded on November 2nd,
1865, between Belgium and China ;

Having regard to the Orders made by the President of the Court in this case on January 8th and February 15th, 1927 ;

Having regard to the Order made by the Court on June 18th, 1927 ;

Whereas, by a decision dated December 14th, 1926, the President of the Court, in virtue of the powers conferred upon him by Article 33 of the Rules of Court, fixed as follows the times for the presentation of the documents of the written proceedings in this suit :

for the Case, by the Applicant,

Wednesday, January 5th, 1927 ;

for the Counter-Case, by the Respondent,

Wednesday, March 16th, 1927 ;

for the Reply, by the Applicant,

Wednesday, April 6th, 1927 ;

for the Rejoinder, by the Respondent,

Wednesday, June 8th, 1927 ;

Whereas, by communications dated January 17th, May 2nd and June 14th, 1927, the Belgian Government, stating that the Belgian and Chinese Governments had decided by mutual agreement to re-open negotiations for the conclusion of a new treaty to replace that of 1865, submitted to the Court requests for successive extensions of the time allowed to the Chinese Government for the presentation of its Counter-Case ;

As, furthermore, by decisions given by the President of the Court on January 20th and May 10th, 1927, and by a decision given by the Court on June 18th, 1927, these requests, which appeared to be intended to meet the desires of the Chinese Government, which had not, at all events, opposed the extensions sought, were successively granted ;

Whereas the Court, by its Order of June 18th, 1927, decided to fix as follows the subsequent times for the written proceedings in the suit between Belgium and China concerning the termination by China of the Chinese-Belgian Treaty of November 2nd, 1865 :

for the Counter-Case, by the Respondent,

Wednesday, February 15th, 1928 ;

for the Reply, by the Applicant,

Sunday, April 1st, 1928 ;

for the Rejoinder, by the Respondent,

Tuesday, May 15th, 1928 ;

Whereas, by a letter addressed to the Registrar of the Court on February 14th, 1928, the Agent for the Belgian Government in the case requested the Court, having regard to the terms of Article 33, paragraph 2, of the Rules, to decide that the filing of the Counter-Case by the respondent Government should be regarded as valid after the expiration of the time fixed for the presentation of that document, provided however that it were effected by February 25th, 1928 ;

As, furthermore, by a decision dated February 21st, 1928, the Court granted this request which appeared to be intended to meet a desire of the Chinese Government ;

Whereas, by a further communication of February 20th, 1928, addressed to the Registrar of the Court, the Agent for the Belgian Government has requested that the subsequent times in the written proceedings should again be extended by six months ;

Considering that this request is submitted as being also in accordance with a desire on the part of the Chinese Government ;

That, furthermore, the object of the extension sought appears to be to enable the two Governments, if possible, to continue their negotiations for the conclusion of a new treaty ;

Considering that, in these circumstances, this request should be granted ;

THE COURT

Decides, in accordance with the provisions of Article 33 of the Rules of Court, to fix as follows the subsequent times for the written proceedings in the case between Belgium and China concerning the termination by China of the Chinese-Belgian Treaty of November 2nd, 1865 :

for the Counter-Case, by the Respondent,

Wednesday, August 15th, 1928 ;

for the Reply, by the Applicant,
Monday, October 1st, 1928;
for the Rejoinder, by the Respondent,
Thursday, November 15th, 1928.

Done in French and English, the French text being authoritative, at the Peace Palace, The Hague, this twenty-first day of February, nineteen hundred and twenty-eight.

(Signed) D. ANZILOTTI,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.
